

CHAPTER 55.

An Act to amend the definition of Agricultural Labourer for the purposes of the Labourers (Ireland) Acts.

[19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Extension of
definition of
agricultural
labourer.
3 Edw. 7. c. 37.

1.—(1) For the purposes of the Labourers (Ireland) Acts, 1883 to 1918, and this Act, the definition of the expression "agricultural labourer" in section ninety-three of the Irish Land Act, 1903, shall be extended so as to include—

- (a) any person (other than a domestic or menial servant) working for hire in a rural district whose average wages exceed two shillings and sixpence a day ;
- (b) any person not working for hire, but working in a rural district at some trade or handicraft without employing any persons except members of his own family :

Provided that—

- (i) the rents charged on any lettings to any such persons shall not be less than shall be specially prescribed by rules of the Local Government Board ; and
- (ii) any question that may arise as to whether a person is a person to whom this section applies shall be determined by the Local Government Board, whose determination shall be final and conclusive ; and
- (iii) this section shall not apply to any person who is in occupation of more than a quarter of an acre of land exclusive of any plot or garden let to him by the rural district council.

Short title,
construction,
and citation

2. This Act may be cited as the Labourers (Ireland) Act, 1919, and shall be construed as one with the Labourers (Ireland) Acts, 1883 to 1918, and may be cited with those Acts.

CHAPTER 56.

An Act to amend the Law relating to Solicitors.

[19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Solicitors Act, 1919.

Commence-
ment of Act.

2. This Act shall come into operation on the first day of January, nineteen hundred and twenty, which date is in this Act referred to as the commencement of this Act.

3. In this Act—

The expression "the principal Act" means the Solicitors Act, 1888;

The expression "the Committee" means the Committee constituted under section twelve of the principal Act;

The expression "the Society" means the Law Society;

The expression "solicitor" means solicitor of the Supreme Court of Judicature in England;

The expression "the Registrar" means the Registrar of Solicitors;

The expression "the Court" means His Majesty's High Court of Justice in England.

Interpretation.

51 & 52 Vict.
c. 65.

4. The Master of the Rolls may at any time and from time to time, in the exercise under section twelve of the principal Act of his powers thereby conferred of filling any vacancy in or adding to the number of the Committee, appoint any past member of the Council of the Society practising in England to be a member of the Committee.

Power to
appoint past
member of
Council of
Society to be
member of the
Committee.

5. An application made after the commencement of this Act to strike the name of a solicitor off the Roll of Solicitors (whether at the instance of the solicitor himself or of any other person), or an application made after the commencement of this Act to require a solicitor to answer allegations contained in an affidavit, shall be made to and shall be heard by the Committee in accordance with rules in that behalf to be made under the authority of this Act, and the Committee shall upon every such application have power, after hearing the case, to make any such order as to striking off the Roll of Solicitors or suspending from practice the solicitor to whom this application relates, or as to the payment by any party of costs or otherwise in relation to the case, as before the commencement of this Act the Court or the Master of the Rolls (as the case may be) would have had power to make upon a report of the Committee made to the Court or the Master of the Rolls pursuant to the provisions of section thirteen of the principal Act.

Applications
to be made to
the Committee
and power for
the Committee
to make orders
thereon.

6. The Committee may administer and take oaths and affirmations for the purpose of any application made to them under this Act, and the applicant, on any such application, and the solicitor to whom the same relates, may respectively for the purpose of such application sue out writs of subpoena ad testificandum and writs of subpoena duces tecum, but no person shall be compelled under any such writ to produce any document which he could not be compelled to produce on the trial of an action.

Power for
Committee to
administer
oaths, &c. and
for the parties
to sue out writs
of subpoena ad
testificandum,
&c.

7.—(1) Every order made by the Committee under this Act shall be in writing, signed by the chairman of this Committee, and shall be prefaced by a statement of the findings of the

Order to be
filed with
Registrar, &c.,
and effect of
order;

Committee in relation to the facts of the case, and shall be filed with the Registrar.

(2) In the case of every order made by the Committee as aforesaid whereby any solicitor is ordered to be struck off the Roll of Solicitors or is suspended from practice, the Registrar shall forthwith upon the filing of such order cause a notice stating the effect of the operative part of such order to be published in the London Gazette.

(3) Every order made by the Committee as aforesaid shall, so soon as the same shall have been filed, be acted upon by the Registrar and be enforceable in the same manner as a judgment or order of the Court to the like effect.

(4) The file of orders made under the Act shall during office hours be open to the inspection of any person without fee or reward.

Appeals.

8. An appeal to the Court from any order of the Committee made under the powers of this Act shall lie at the instance either of the applicant or of the solicitor, and every such appeal shall be made within such time and in such form and shall be heard in such manner as shall be prescribed by rules in that behalf to be made under the authority of this Act.

Rules.

9.—(1) The Committee, with the concurrence of the Master of the Rolls, may make and from time to time alter and revoke rules for regulating the making, hearing and determining of applications under section five of this Act.

(2) The Master of the Rolls, with the concurrence of the Lord Chancellor and the Lord Chief Justice of England, or one of them, may make and from time to time alter and revoke rules prescribing the time, form, and manner within and in which appeals under section eight of this Act shall be made and heard.

Saving for jurisdiction of Master of Rolls and other judges.

10. Nothing in this Act contained shall prejudice, diminish, or affect the jurisdiction which, apart from the provisions of the principal Act and this Act, or either of them, is exercisable by the Master of the Rolls or any judge of the Court over solicitors.

Repeal.

11. As from the commencement of this Act, sections thirteen, fourteen, and fifteen of the principal Act, and any rules made under section fifteen of the principal Act, are hereby respectively repealed, but without prejudice to anything already done or suffered under such sections or any of them, or to any application or proceeding which at the commencement of this Act may be pending under section thirteen of the principal Act, and any such pending application or proceeding as aforesaid may be carried on and completed in all respects as though this Act had not been passed.